RV College of Engineering®

Unit – 5 Questions and Answers, E & IPR

Q. No		M
1	How the software copyright infringement is analyzed in India ?	1
Ans	In India, it is judged by substantial similarity test.	
2	What is the duration of copyright protection for a novel?	1
Ans	60 years in addition to the author's lifespan	
3	Define Performer's rights.	2
Ans	The performer has the exclusive right to do the following: a) To make a sound or visual recording of the performance. b) To reproduce a sound or visual recording of the performance. (Mention any two rights of the performer)	
4	What is the intent of Copyright protection?	2
Ans	The normal prerequisite for copyright protection, that a work must be original, is well suited to be applied to computer programmes. A desirable consequence of copyright protection, i.e. an appropriate protection is offered without creating unreasonable obstacles to independent creation of such programmes.	
5	Mr. X has discussed an idea of video games with Mr. Y and Mr. Z. Later, Mr. Y has written a Video games based on discussion. Who will be author and owner of video games?	2
Ans	Copyright protection is available for expression of idea. As Y has written the video games, he will be author and owner in absence of any agreement between Mr. X and Mr.Y.	

6	Differentiate between Industrial design right and Patent.	2
Ans	An industrial design right protects only the appearance or aesthetic features of a product, whereas a patent protects an invention that offers a new technical solution to a problem. In principle, an industrial design right does not protect the technical or functional features of a product. Such features could, however, potentially be protected by a patent.	
7	Mention some of the limitations with respect to Broadcasting rights.	2
Ans	The broadcasting organization is conferred with 'Broadcasting Reproduction Rights' wherein the organization is conferred with a series of rights in respect to the broadcast made. The performance of any act shall require a license of the broadcasting organization or else the act shall be treated to be a violation of copyright.	
8	What can be registered as an Industrial design ?	2
Ans	An industrial design is the ornamental or aesthetic aspect of an article which is generally mass-produced and useful. It may consist of three- dimensional features such as shape or surface or two-dimensional features such as patterns, line or colours (or their combination) applied on an article by any industrial process or means which in the finished article are judged solely by the eyes; it does not include any mode or principle of construction.	
9	Cinematographic works and Photographic works have a minimum period of protection of _____and _____years upon the date of creation, respectively.	2
Ans	50 and 25	
10	What are the criteria for a design to qualify for registration as an industrial design?	2

Ans	Criteria for a design to qualify for registration as an industrial design are : (i) Must be new (ii) Must be Original (iii) Appealing to eye	
11	Difference between licensing and assignment of copyright.	2
Ans	The assignment involves the transfer of ownership and a bundle of rights associated with the copyrighted work, while licensing allows the owner to grant permissions to another person while retaining ownership of the copyright.	
12	Can a colour by itself be subject matter registration of industrial design? If yes, justify your statement.	2
Ans	Yes, a colour can be the subject matter of registration of an industrial design, but only if the colour form an integral part of the design. For instance, a specific color applied to a product may be part of the design's distinctive visual appeal, but the color alone cannot be registered unless it has been applied in a way that forms a novel design pattern.	
13	The Copyright Act of India provides right holders dual legal machinery for enforcing their rights. The enforcement is possible through _____ and _____.	2
	The Copyright Board and The courts.	
14	Differentiate between trade secret and copyright.	2

<table>
<tr><td>Ans</td><td>
<table>
<tr><td></td><td>Trade Secret</td><td>Copyright</td></tr>
<tr><td>Protections</td><td>Formula, method, device, machine, compilation of facts or any information that is confidential and gives a business an advantage.</td><td>Books, photos, music, recordings, fine art, graphics, videos, film, architecture, computer programs.</td></tr>
<tr><td>Length of Protection</td><td>As long as information remains confidential and functions as a trade secret.</td><td>Life of the author plus 70 years for works created by a single author. Other works such as works made for hire, 120 years from date of creation or 95 years from first publication.</td></tr>
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<tr><td>15</td><td>Why to protect a trade secret?</td><td>2</td></tr>
<tr><td>Ans</td><td>The information is usually protected as a trade secret when the other forms of IPR protection cannot be used. For example, an idea cannot be protected by patent, it cannot be protected by a copyright, unless it is expressed or fixed. However, to protect this idea can be very crucial from the commercial point of view. In such case, it has to be protected as a trade secret.</td><td></td></tr>
<tr><td>16</td><td>Differentiate between a patent and trade secret.</td><td>2</td></tr>
<tr><td>Ans</td><td>• Patent protection lasts for 20 years; trade secret protection lasts for as long as the material remains secret.
• Trade secret rights can be acquired immediately, but it often takes several years to acquire a patent.
• Trade secrets can cover more information than a patent, which is limited to one general statement of the invention and its details.</td><td></td></tr>
<tr><td>17</td><td>Mention any two benefits of protecting an industrial design through registration</td><td>2</td></tr>
</table>

Ans	It ensures the design is exclusively owned, preventing unauthorized copying. It allows the design to be licensed or sold, generating additional revenue. It enhances the competitiveness of the business by improving its market position.	
18	List two key elements that need to be proven by a plaintiff in a passing off action.	2
Ans	Goodwill or Reputation, Misrepresentation, Damage	
19	Plan of a building can be protected by_____.	1
Ans	Copyright	
20	Design Thinking typically helps in enhancing _____.	1
Ans	User Experience	
21	In order to register Industrial Design, Design should be new and _____.	1
Ans	Industrially applicable	
22	Whether the shape and configuration of spring can be registered as Industrial Design in India? Analyze	1
Ans	No, it will be considered as architectural work but portable building can be registered.	
23	_____is a product formula, pattern, design, compilation of data, customer list, or other business secret**.**	1
Ans	Trade secret.	
24	Hall mark is an example for _____mark.	1
Ans	Certification Mark.	

25	For licensing of Trademarks, the application for recordal of the registered user in India should be made within _____months from the date of the agreement.	1
Ans	Six months.	
26	An assignment where the owner transfers the rights and value of the trademark as associated with the product it sells,is known as _____.	1
Ans	Assignment with Goodwill.	
27	Differenciate between licensing and assignment of copyrights.	2
Ans	The assignment involves the transfer of ownership and a bundle of rights associated with the copyrighted work, while licensing allows the owner to grant permissions to another person while retaining ownership of the copyright.	
28	List any two important features of digital features.	2
Ans	1. Authentication – They authenticate the source of messages. Since the ownership of a digital certificate is bound to a specific user, the signature shows that the user sent it. 2. Integrity – Sometimes, the sender and receiver of a message need an assurance that the message was not altered during transmission. A digital certificate provides this feature. 3. Non-Repudiation – A sender cannot deny sending a message which has a digital signature. (Any two)	
1	Discuss any five works that can be claimed under copyrights.	10

Ans	(i) to reproduce the work, (ii) to publish the work, (iii) to perform the work in public or communicate it to the public, (iv) to produce, reproduce, perform or publish any translation of the work, (v) to make any cinematographic film or a record in respect of the work, (vi) to make any adaptation of the work, (vii) to do, in relation to a translation or an adaptation of the work, any of the acts specified to the work in sub clauses to (a) to (f). Any five of the above to be explained ----------	2x5=10
2	Explain the infringement of copyrights with case studies.	10
Ans	Copyright infringement is the use of works protected by copyright law without permission, infringing certain exclusive rights granted to the copyright holder, such as the right to reproduce, distribute, display or perform the protected work, or to make derivative works. Common forms of infringement: • Reproduction of the work in a material form. • Publication of the work. • Performance of the work in public. • Making of adaptation and translation of the work and doing any of the above acts in relation to a substantive part of the work. Explain any two case studies ----------	1 4 2.5 x 2 = 5
3	Explain the acts which do not constitute Infringement of Performer's rights.	10

Ans	Section 39 broadly lays down the acts which do not constitute infringement of a performer's right as the following: a) the making of any sound recording or visual recording for the private use of the person making such recording, or solely for purposes of bona fide teaching or research; or b) the use, consistent with fair dealing, of excerpts of a performance or of a broadcast in the reporting of current events or for bona fide review, teaching or research; or c) such other acts, with any necessary adaptations and modifications, which do not constitute infringement of copyright under Section 52. These acts are: i. the reproduction of a literary, dramatic, musical or artistic work for the purpose of a judicial proceeding or for the purpose of a report of a judicial proceeding; ii. The reproduction or publication of a literary, dramatic, musical or artistic work in any work prepared by the Secretariat of a Legislature or, where the Legislature consists of two Houses, by the Secretariat of either House of the Legislature, exclusively for the use of the members of that Legislature; iii. the reproduction of any literary, dramatic or musical work in a certified copy made or supplied in accordance with any law for the time being in force; iv. the performance, in the course of the activities of an educational institution, of a literary, dramatic, or musical work by the staff and students of the institution, or of a cinematography film or a record, if the audience is limited to such staff and students, the parents and guardians of the students and persons directly connected with the activities of the institution or the communication to such an audience of a cinematograph film or sound recording. 7	
4	List and explain the steps for filing an application for Industrial design.	10
Ans	Steps for filing an application form for Industrial design : i. The already existing designs are searched. ii. A representation showing the exact article on which the registration is applied is prepared.	

	iii. The appropriate class for the design is identified from the internationally accepted 32 classes of designs. iv. Evidence of novelty in the design is prepared. v. A priority date for Convention Countries is claimed. vi. The required fees should accompany application. Presently the fee for registration is Rs. 1000 and for renewal, it is Rs. 2000. vii. After completing the above procedures the application can be filed either in the Design Office in Kolkata or any branch of the Patent Office in Delhi, Mumbai or Chennai. viii. After the examination, if demanded, additional information required by the Design Office should be submitted as soon as possible. ix. To facilitate easy communication and registration full and correct addresses should be furnished.	
5	Analyze the effectiveness of copyright protection as the preferred legal framework for safeguarding computer software. Discuss its advantages over patent protection and evaluate the challenges it faces in addressing issues such as software piracy and authorship in works created or used by computers.	10
Ans	**Any 5 Key Points to be addressed in the answer** • E**ffectiveness of Copyright Protection for Computer Software:** • **Nature of Copyright Protection**: Copyright law protects the **expression** of ideas (such as code), rather than the idea itself. This makes it particularly suitable for software, as it focuses on protecting the way in which software is written and structured. • **Automatic Protection**: Copyright protection is automatic once a software program is created and fixed in a tangible medium (i.e., written code). This provides immediate legal protection without the need for registration, although registration may enhance enforcement.	3

- **Duration**: Copyright protection for software lasts for the life of the author plus a certain number of years (typically 70 years in most jurisdictions). This provides long-term protection, which can be crucial for software developers who want to protect their creations from unauthorized copying or distribution.

• Advantages of Copyright Protection Over Patent Protection: 3

- **Scope of Protection**: Copyright protects the actual code, user interfaces, and other expressive aspects of software, while patents protect **functional inventions**. Software functionality can be difficult to patent because it involves abstract ideas, algorithms, or processes that might not meet the patentability criteria (novelty, non-obviousness, etc.).

- **Faster and More Accessible**: Patent registration is often more complex, expensive, and time-consuming compared to copyright registration. Obtaining a patent can take years, while copyright protection is automatic and usually cheaper. 5
- **Less Restrictive**: Software patents often have narrow claims and can create legal uncertainty, whereas copyright law is more straightforward and focused on protecting the tangible expression of the software, without necessarily limiting how it functions.

• Challenges Facing Copyright Protection:

- **Software Piracy**: One of the biggest challenges for copyright law in the context of software is the issue of **piracy**—the unauthorized copying, distribution, or use of software. Digital technology, including online platforms, makes it easy for infringers to distribute pirated software on a large scale, creating enforcement difficulties.
- **Enforcement Issues**: The **global nature** of the internet complicates enforcement, as software piracy can occur across borders, making it hard to enforce copyright in some jurisdictions. Even when legal actions are pursued, enforcing judgments internationally remains a challenge.
- **Attribution and Authorship**: Software often involves multiple authors, and the question of **authorship** can be unclear, especially when a work is created collaboratively. This complicates the determination of copyright ownership, especially in open-source projects or software developed by multiple contributors.

	• **Derivative Works**: With software, there is a potential for derivative works (e.g., modifications, adaptations, or reverse-engineered versions). While copyright law protects the original work, it may be challenging to stop the creation of derivative works or to address instances where someone uses the software code in a new project.	
6	Trade secret theft can be extremely difficult to detect and even harder to prove in a court of law. In some cases, victims may even hold strong suspicions over the loss of certain trade secrets to former employees but, as is often the case, are unable to take any action to redress losses because of a lack of proof. In 2010, several relationship managers of a European bank in Singapore left en masse to a rival bank. Prior to leaving the bank, they emailed data from the bank's computer system to their own personal email accounts; they also accessed and printed confidential company data. Nowadays information accessed by such means can easily be gathered from system logs, and recent advances in computer forensics have made it easier to retrieve deleted files. Thanks to such information gathering systems, these employees were subsequently charged in a Singaporean court for the unauthorised access of confidential client data. Imagine yourself as helpdesk advisor and give the advice on this.	8
Ans	**Helpdesk advice** • Establish an internal management system for trade secrets. Training and clear written guidelines are essential. As your employees may not have the same understanding of proprietary information and intellectual property rights as you, it is important to educate them on what can or cannot be disclosed. • Adopt appropriate measures to mark and store confidential documents whether such documents are in electronic or paper format.	1 1 3 3

	• Require all employees to sign an employment agreement with strict confidentiality provisions. To win a theft of trade secrets claim, you must show that the information stolen is (1) not publicly known, (2) has commercial value, and (3) that you took measures to keep it secret. When a current or former employee steals your trade secrets, having an employment agreement with confidentiality provisions is essential to show that you took measures to keep it secret. • A useful tool to be aware of is the Singapore Misuse of Computer Act. The relatively wide definition of computer misuse makes it an offence if a person gains unauthorised access to the employer's computers to retrieve or download information. The Computer Misuse Act is relevant to the protection of trade secrets as most confidential information now tends to be stored in company computers. Complaints under the Misuse of Computer Act are often a cheap and effective way of protecting trade secrets since investigation and prosecution are carried out by the police and state prosecutor. The employer's only outlay might be in engaging a local consultant to undertake computer forensics in order to collect any evidence deemed relevant in order for the police to take the case further.	
7	Imagine a cricketer sets up his own company to sell his own range of clothes. What type of intellectual property can he use to show that the clothes are made by his company? Explain.	8
Ans	• Trademarks: This is the most important type of IP for protecting a brand. A trademark is a word, phrase, symbol, or design that identifies and distinguishes the source of goods or services. In the case of a sports team, this could be the team logo, mascot, or even a specific colour scheme. For instance, the iconic New York Yankees pinstripes are a registered trademark. • Copyrights: Copyrights protect original works of authorship, such as designs, patterns, and slogans. This could include the designs of the team's clothing, as well as any marketing materials or advertising campaigns. • Designs: In some jurisdictions, designs can be registered to protect the unique appearance of a product. This could be used to protect the specific design of a team's jersey or other clothing items.	2 2 2 2

	• Geographical indications: If a team's clothing is made in a specific region with a reputation for quality, they may be able to use a geographical indication to protect their product.	
8	Explain the acts which do not constitute Infringement of Copyright.	8
Ans	• A fair dealing with a literary, dramatic, musical or artistic work for the purposes of – i. private use, including research ii. criticism or review, whether of that work or of any other work. • The making of copies or adaptation of a computer programme by the lawful possessor of a copy of such computer programme, from such copy- i. in order to utilize the computer programme for the purposes for which it was supplied, or ii. to make back up copies purely as a temporary protection against loss, destruction or damage in order only to utilize the computer programme for the purpose for which it was supplied. • Reporting of current issues : A fair dealing with a literary, dramatic, musical or artistic work for the purpose of reporting current events- i. in a newspaper, magazine or similar periodical, ii. in a cinematograph film or by means of photographs, • Reproduction in connection with judicial proceedings: The reproduction of a literary, dramatic, musical or artistic work for the purpose of judicial proceeding or for the purpose a report of a judicial proceedings; • Reproduction for legislative purposes: The reproduction or publication of a literary, dramatic, musical or artistic work in any work prepared by the Secretariat of a Legislature, exclusively for the use of the members of that Legislature; • Reproduction to make certified copies : The reproduction of any literary, dramatic or musical work in a certified copy made or supplied in accordance with any law for the time being in force; • Reading / Recitation of extracts : The reading or recitation in public of any reasonable extract form a published literary or dramatic work;	8 or 10

	• Publication for use of educational institutions: The publication in a collection, mainly composed on non copyright matter, bona fide intended for the use of educational institutions or short passages from published literary or dramatic works, not themselves published for the use of educational institutions, in which copyright subsists; • Reproduction by teacher or pupil in the course of instruction : as part of the questions to be answered in an examination, or in answers to such questions. • The performance, in the course of the activities of an educational institutions, of a literary, dramatic or musical work by the staff and students of the institution, or of a cinematograph film if the audience is limited to such staff and students, the parents and guardians of the students and persons directly connected with activities of the institution. • Reproduction of an article on current economic, political, social or religious matters in newspapers, magazines etc, • The publication in a newspaper, magazine or other periodical of a report of a lecture delivered in public. • The making of not more than three copies of a book (including a pamphlet, sheet of music, map, chart or plant) by or under the direction of the person in charge of a public library for the use of the library if such book is not available for sale in India. • The reproduction, for the purpose of research or private study or with a view to publication, of an unpublished literary, dramatic or musical work kept in a library, museum or other institution to which the public has access. • The reproduction or publication of- any matter which has been published in any Gazette or reports of government commission or other bodies appointed by government. • Reproduction or publication of Any judgment or order of a court, tribunal or other judicial authority, not prohibited from publication. • Production or publication of translation of acts of legislature or rules. • The making or publishing of a painting, drawing, engraving or photograph of a work of architecture or its display. • The making or publishing of a painting, drawing, engraving or photograph of a sculpture, or other artistic works permanently situated in a public place. • Inclusion in a cinematographic film of any artistic work permanently situated in a public place.	
9	List and explain different types of Cyber crimes.	8

Ans

a) Unauthorized access & Hacking:- Access means gaining entry into, instructing or communicating with the logical, arithmetical, or memory function resources of a computer, computer system or computer network.

b) Trojan Attack:- The program that act like something useful but do the things that are quiet damping. The programs of this kind are called as Trojans. Trojans come in two parts, a Client part and a Server part. When the victim (unknowingly) runs the server on its machine, the attacker will then use the Client to connect to the Server and start using the trojan.

c) Virus and Worm attack:- A program that has capability to infect other programs and make copies of itself and spread into other programs is called virus. Programs that multiply like viruses but spread from computer to computer are called as worms.

d) E-mail related crimes:-

- Email spoofing : Email spoofing refers to email that appears to have been originated from one source when it was actually sent from another source. Please Read
- Email Spamming: spamming refers to sending email to thousands and thousands of users - similar to a chain letter. Sending malicious codes through email. E-mails are used to send viruses, Trojans etc through emails as an attachment or by sending a link of website which on visiting downloads malicious code.
- Email bombing: E-mail "bombing" is characterized by abusers repeatedly sending an identical email message to a particular address. Making of false, derogatory statement(s) in private or public about a person's business practices, character, financial status, morals, or reputation. Oral defamation is a slander whereas printed or published defamation is a libel.
- Email frauds: Email fraud is the intentional deception made for personal gain or to damage another individual through email.

e) Internet Relay Chat (IRC) related crimes:-

Three main ways to attack IRC are: Denial of service attacks, clone attacks, and flood attacks.

Denial of Service attacks:- Flooding a computer resource with more requests than it can handle. This causes the resource to crash thereby denying access of service to authorized users

f) Sale of illegal articles

This would include sale of narcotics, weapons and wildlife etc., by posting information on websites, auction websites, and bulletin boards or simply by using email communication.

g) Online gambling

There are millions of websites; all hosted on servers abroad, that offer online gambling. In fact, it is believed that many of these websites are actually fronts for money laundering.

10	**Difference between Electronic Signature and Digital Signature**	8

Ans

S.No.	ELECTRONIC SIGNATURE	DIGITAL SIGNATURE	
01.	An electronic signature is a digital form of a wet link signature that is legally binding and secure.	Digital Signature is a secured signature that works with an electronic signature and relies on public key infrastructure.	
02.	It can be a symbol, image, or process attached to the message or document to recognize the identity and to give consent to it.	It can be visualized as an electronic fingerprint that encrypts and identifies a person's identity.	
03.	It is used for verifying a document.	It is used for securing a document.	
04.	The validation of electronic signatures is not performed by any trusted certificate authorities or trust service providers.	While the validation of digital signature is performed by trusted certificate authorities or trust service providers.	
05.	It is vulnerable to tampering.	While it is highly secure.	

06.	Electronic signature is not usually authorized.	Digital signature is usually authorized.	
07.	Electronic signatures cannot be verified.	A digital signature can be verified.	
08.	Fewer security features are involved in electronic signatures.	While Digital signature is comprised of more security features.	
09.	Verbal, electronic ticks, or scanned signatures are the common types of e-signatures.	Types of digital signatures include Adobe and Microsoft.	
10.	It does not incorporate any coding or standards.	While digital signature comes with encryption standards.	
11.	It is simple to use, but it has a lesser level of evidential value.	It is generally preferred because of more authenticity.	
12.	When to use? Electronic signatures are widely used in contracts and agreements by many businesses. For example, your company may require clients to electronically sign loan applications and other financial commitments. Y	When to use? A digital signature uses a digital certificate to verify the signer's identity, making it a good, safe tool for sensitive data like financial records, HIPAA-compliant paperwork, and other private papers or contracts	

11	Identify the documents for which the Information Technology Act, 2000 cannot be applied.	6
Ans	According to Section 1 (4) of the Information Technology Act, 2000, the Act is not applicable to the following documents: 1. Execution of Negotiable Instrument under Negotiable Instruments Act, 1881, except cheques. 2. Execution of a Power of Attorney under the Powers of Attorney Act, 1882. 3. Creation of Trust under the Indian Trust Act, 1882. 4. Execution of a Will under the Indian Succession Act, 1925 including any other testamentary disposition by whatever name called. 5. Entering into a contract for the sale of conveyance of immovable property or any interest in such property. 6. Any such class of documents or transactions as may be notified by the Central Government in the Gazette.	
12	List the advantages of protecting a design under Industrial design right.	6
Ans	The protection of industrial designs should form an integral part of any business strategy. The main reasons to protect industrial designs are the following: • *Return on investments*: Protection contributes to obtaining a return on investments made in creating and marketing attractive and innovative products. • *Exclusive rights*: Protection provides exclusive rights for at least 10 years, so as to prevent or stop others from commercially exploiting or copying the industrial design. • *Strengthen brands*: Industrial designs can be an important element of a company's brand. Protecting industrial designs contributes to protecting a company's brand. • *Opportunity to license or sell*: Protection provides rights that may be sold or licensed to another enterprise, which will then be a source of income for the owner of the rights. • *Positive image*: Protection helps convey a positive image of a company, since industrial designs are business assets which may increase the market value of a company and its products. • *Reward*: Protecting industrial designs rewards and encourages creativity.	

13	Identify and explain the key tools and measures available in India to protect trade secrets effectively?	6
Ans	• Trade secret policy:Making sure that a limited number of people know the secret and that, all those who do, are well aware that it is confidential information. • Employee agreement:Signing confidentiality agreements with business partners whenever disclosing confidential information. • Non-disclosure Agreements: Including confidentiality agreements within employees' contracts. Under the law of many countries, however, employees owe confidentiality to their employer even without such agreements. • Adequate documents: The duty to maintain confidentiality on the employer's secrets generally remains even after the employee has left the employment. This duty may be limited to a certain period of time after the employment ceases. • Security Systems: It is important to make sure that enterprises take all necessary measures to protect their trade secrets effectively. • Access Control : Limiting access to sensitive information on a need-to-know basis and implementing physical and digital security measures such as secure storage, password protection, and encryption.	
14	List and explain the remedies that are available if the Industrial Design is Infringed.	6
Ans	• Cease and Desist Letters: Sending a formal notice demanding that the infringer stop using the design and possibly compensate for damages. • Negotiation: Attempting to resolve the dispute through negotiation, potentially through licensing agreements or other arrangements. • Injunctions: Seeking court orders to stop the infringing activities immediately. • Damages or Compensation: Seeking monetary damages to compensate for financial losses resulting from the infringement. • Destruction or Seizure of Infringing Goods: Obtaining court orders for the destruction or seizure of goods that infringe on the design rights. • Legal Proceedings: Initiating legal action in court to enforce rights, obtain remedies, and seek appropriate relief.	
15	List the advantages of trade secret.	6

Ans	• Unlimited duration -trade secrets could potentially last longer than patents (20 years) and copyrights • Your protection is theoretically worldwide • No application required • No registration costs • No public disclosure or registration with government agency • Effective immediately	
16	Identify and explain the need for Cyber Laws.	6
Ans	Laws are necessary in all segments of society, and e-commerce is no exception. Those in the online world should recognize that copyright, patent, and trademark laws protect much of the material found on the Internet. All Internet users, including minors, need to be assured of their privacy and the safety of their personal information online. In today's highly digitalized world, almost everyone is affected by cyber law. Almost all companies extensively depend upon their computer networks and keep their valuable data in electronic form. Government forms including income tax returns, company law forms etc are now filled in electronic form. Consumers are increasingly using credit cards for shopping. Most people are using email, cell phones and SMS messages for communication. Even in "non-cyber crime" cases, important evidence is found in computers / cell phones e.g. in cases of divorce, murder, kidnapping, tax evasion, organized crime, terrorist operations, counterfeit currency etc. Cyber crime cases such as online banking frauds, online share trading fraud, source code theft, credit card fraud, tax evasion, virus attacks, cyber sabotage, phishing attacks, email hijacking, denial of service, hacking, pornography etc are becoming common. Cyberspace is an intangible dimension that is impossible to govern and regulate using conventional law. Cyberspace has complete disrespect for jurisdictional boundaries. Cyberspace handles gigantic traffic volumes every second. Cyberspace is absolutely open to participation by all.	

	Cyberspace offers enormous potential for anonymity to its members. Electronic information has become the main object of cybercrime. It is characterized by extreme mobility, which exceeds by far the mobility of persons, goods or other services. A software source code worth cores of rupees or a movie can be pirated across the globe within hours of their release. Theft of corporeal information (e.g. Books, papers, CD, ROMs, floppy disks) is easily covered by traditional penal provisions.	
17	Explain the objectives of The Information Technology Act, 2000.	4
Ans	The objectives of the Act are as follows: 1. Grant legal recognition to all transactions done via electronic exchange of data or other electronic means of communication or e-commerce, in place of the earlier paper-based method of communication. 2. Give legal recognition to digital signatures for the authentication of any information or matters requiring legal authentication 3. Facilitate the electronic filing of documents with Government agencies and also departments facilitate the electronic storage of data 5. Give legal sanction and also facilitate the electronic transfer of funds between banks and financial institutions 6. Grant legal recognition to bankers under the Evidence Act, 1891 and the Reserve Bank of India Act, 1934, for keeping the books of accounts in electronic form.	
18	Differentiate between Industrial design and Copyrights.	4
Ans		

Particulars	**Copyright**	**Design**
Nature of Protection	Copyright protects original literary, artistic, and musical works which covers expressions of ideas and creativity	Design protection applies to the visual appearance or aesthetics of an article. It safeguards the appearance, ornamentation, or shape of a product.

	Scope of Protection	It protects the intellectual invention itself, not its practical components, and grants the exclusive right to reproduce, distribute, perform, and display the work.	Protects the specific visual features, not the underlying idea or concept. Primarily focuses on the external, ornamental aspects of a design.
	Registration Requirement	Registration is not mandatory but provides legal advantages. When a work is created, copyright protection is automatically applied.	Registration is necessary to claim design protection. Design needs to be new and original for registration.
	Duration of Protection	Generally, it lasts for the lifetime of the creator plus 60 years. The protection period for works written under pseudonyms or in anonymity is 60 years after publication.	Design protection typically lasts for 10 years, renewable for another 5 years. After 15 years, the design enters the public domain.

19	List and explain the essential characteristics of a design.	4

Ans	Essential characteristics of a design: • The design must be ***"new".*** A design is considered to be new if no identical design has been made available to the public before the date of filing, or the application for registration. • The design must be *"**original**".* A design is considered original if it has been independently created by the designer and is not a copy or an imitation of existing designs. • The design must have *"**individual character**"***.** This requirement is met if the overall impression produced by a design on an informed user differs from the overall impression produced on such a user by any earlier design which has been made available to the public.	1 1 2
20	List and explain the rights conferred by Copyrights.	4
Ans	The rights conferred by copyrights include: 1. Right of adaptation, 2. Right of reproduction, 3. Right of publication, 4. Right to make translations, 5. Communication to public etc. **Copyright** protection is **conferred** on all Original literary, artistic, musical or dramatic, cinematograph and sound recording works. (Any 4)	
21	List and explain the rights conferred by Broadcasting Reproduction Rights.	4
Ans	The rights conferred by Broadcasting Reproduction Rights are: 1. reproducing the broadcast; 2. causing the broadcast to be heard or seen by the public on payment of any charges; 3. making any sound recording of visual recording of the broadcast; 4. making any reproduction or such sound recording or visual recording where the initial recording was unauthorized; 5. selling or hiring or offering for sale or hire to the public any such sound or visual recording. (Any 4)	

22	What is Revocation of industrial designs ? Why there is a need to revocate the Industrial Design ?	4
Ans	Revocation of industrial designs refers to the legal process of cancelling or invalidating the registration of an industrial design. This can occur for various reasons, including: • Lack of Novelty or Originality: If the industrial design is not new or lacks originality compared to prior designs. • Lack of Individual Character: If the design does not possess an individual character, meaning it's not distinguishable from existing designs to an informed user. • Non-Compliance: Failure to comply with formal requirements or procedures during the application process. • Invalidity Claims: Third parties may file invalidity claims challenging the validity of the registered design based on prior rights or other legal grounds.	
23	Identify and explain the provisions provided by Section 3 of the Information Technology Act, 2000 for the authentication of electronic records.	4
Ans	The provisions are: • Subject to the provisions of this section, any subscriber can affix his digital signature and hence authenticate an electronic record. • An asymmetric crypto system and hash function envelop and transform the initial electronic record into another record which affects the authentication of the record. • Also, any person in possession of the public key can verify the electronic record. • Further, every subscriber has a private key and a public key which are unique to him and constitute a functioning key pair.	